

"acting in a capacity comparable to that of members of a state legislature" (Lake Country Estates, Inc. v. Tahoe Regional Planning Agency, 440 U.S. 391, 406 (1979)). In Lake Country Estates, the immunity was extended to a regional planning agency created by interstate Compact where the members were "acting in a legislative capacity" even though the agency was not attached to a legislative branch of government (id. at 405 & n.30). This functional approach to immunity analysis similarly is reflected in Supreme Court of Virginia v. Consumers Union of the United States, Inc., 446 U.S. 719, 731 (1980), where the Court held that the Virginia Supreme Court's promulgation of disciplinary rules was not judicial but legislative in nature and, therefore, was cloaked with legislative immunity.

See UNITED STATES 12, 50; STATES 28(2);
CIVIL RIGHTS 13.8(2,3).

II. EXECUTIVE IMMUNITY DOCTRINE

Executive immunity differs markedly in origin from its judicial and legislative counterparts. These doctrines already were grounded firmly in the common law (and, in the case of the latter, the Constitution) when the Supreme Court first considered them; and the development of judicial and legislative immunity has been guided by these historical roots. Executive immunity has lacked clear common law parallels to shape its development, however. As a consequence,